

Subj: **USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD**

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

The Marine Corps Tactical Systems Support Activity (MCTSSA), through its Test and Engineering Division (TED) provides technical expertise, experimentation, and system testing to support the development and evaluation of Marine Corps tactical systems. An operational gap exists in the ability to perform advanced data analysis, modeling, simulation, and algorithm development in a standardized and scalable environment. Current capabilities lack a unified analytical platform to efficiently process complex datasets, develop mission-relevant models, and support emerging requirements in 5G, wireless communications, signal processing, and Artificial Intelligence/Machine Learning (AI/ML).

To address a validated capability gap in data analysis, modeling, and simulation, this requirement supports the renewal of two (2) existing MathWorks MATLAB® software licenses and the procurement of one (1) additional license, for a total of three (3) licenses. Each license will be configured with 15 mission-essential toolboxes to enable advanced analytical and engineering capabilities in support of mission requirements.

To meet this requirement, MCTSSA requires MathWorks MATLAB® software licenses, including associated toolboxes, license configurations, and Software Maintenance Services (SMS). This solution provides a commercially available, industry-standard platform for advanced numerical computing, data analysis, algorithm development, and model-based design. MATLAB® offers a proven, interoperable capability aligned with existing Marine Corps engineering workflows and supports integration with mission systems and external data sources.



Requested Contract Award/Delivery Date: **30 June 2026.**

Technical Requirements are reflected in Table 1:

Table 1

TED MATLAB Requirement - Master License 31495481						
Product	License(s)	Part #	Type	Qty	Months	Service Period
MATLAB (SMS Renewal)	40917542, 40917543	MLSMS	Renewal	2	12	01 Jul 2026 – 30 Jun 2027
5G Toolbox	40917542, 40917543, New 1	5G	New	3		
Communications Toolbox	40917542, 40917543, New 1	CM	New	3		
Computer Vision Toolbox	40917542, 40917543, New 1	VP	New	3		
Curve Fitting Toolbox	40917542, 40917543, New 1	CF	New	3		
DSP System Toolbox	40917542, 40917543, New 1	DS	New	3		
Deep Learning Toolbox	40917542, 40917543, New 1	NN	New	3		
Image Processing Toolbox	40917542, 40917543, New 1	IP	New	3		
Instrument Control Toolbox	40917542, 40917543, New 1	IC	New	3		

LTE Toolbox	40917542, 40917543, New 1	LS	New	3		
Parallel Computing Toolbox	40917542, 40917543, New 1	DM	New	3		
Reinforcement Learning Toolbox	40917542, 40917543, New 1	RL	New	3		
Signal Processing Toolbox	40917542, 40917543, New 1	SG	New	3		
Statistics & Machine Learning Toolbox	40917542, 40917543, New 1	ST	New	3		
WLAN Toolbox	40917542, 40917543, New 1	WL	New	3		
Wireless Testbench	40917542, 40917543, New 1	WB	New	3		
MATLAB	New 1	ML	New	1	12	01 Jul 2026 – 30 Jun 2027

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING:

A. ONLY ONE RESPONSIBLE SOURCE:

- RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.
- EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.
- OTHER REASONS.

B. X BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

Pursuant to FAR 11.104, the Government has determined that a brand name specification is required for the procurement of MathWorks MATLAB® software licenses, associated toolboxes, and Software Maintenance Services (SMS). This determination is based on the essentiality of MATLAB's unique, integrated capabilities and the results of market research, which demonstrate that no other product can meet the Government's requirements without substantial risk.

The Government is precluding consideration of products manufactured by other companies because MATLAB® provides a purpose-built, industry-standard environment for advanced data analysis, modeling, simulation, and algorithm development. MATLAB's architecture integrates a high-level programming environment with a comprehensive suite of specialized toolboxes (e.g., signal processing, communications, AI/ML) into a single, cohesive platform.

MATLAB® is essential to the Government's requirement

Additionally, MATLAB® supports direct integration with existing Government-developed models, scripts, and engineering processes

These features are intrinsic to MATLAB® and cannot be replicated through a "brand name or equal" specification without fundamentally altering the requirement or introducing unacceptable risk.

A "brand name or equal" purchase description cannot be used because no other commercially available product provides an equivalent, fully integrated analytical environment that meets all required technical and operational criteria. Attempting to define "equal" characteristics would either be overly restrictive or too broad, resulting in solutions that lack critical capabilities or require the integration of multiple disparate tools. Such an approach would increase costs, introduce schedule delays, and elevate technical risk associated with tool interoperability, data compatibility, and revalidation of analytical outputs.

Market research conducted through NASA SEWP, Department of War (DoW) Enterprise Software Initiative (ESI), and SAM.gov identified that while alternative analytical tools exist, none provide the same comprehensive, integrated capability set required by the Government.

Competing tools would require significant customization, additional licensing, and redevelopment of existing analytical models, resulting in unacceptable cost, schedule, and performance impacts.

Accordingly, the specific brand name MATLAB® is essential to meet the Government’s minimum requirements. The use of a brand name specification is therefore justified, as no other product can meet the requirement without compromising mission effectiveness, increasing risk, or requiring fundamental changes to the Government’s operational objectives.

C. ___ UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATIONS/APPROVALS:

A. Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

